MEADOW MOUNTAIN PROPERTY OWNERS ASSOCIATION NO. II-A, INC.
Travis County, Texas

RULES OF CONDUCT

Exhibit A to the Bylaws

April 2026

These Rules of Conduct ("Rules") are adopted by the Board of Directors of Meadow Mountain Property Owners Association No. II-A, Inc. pursuant to Article VIII of the Association's Bylaws and Article XIII, Section 5 of the Declaration. These Rules govern the day-to-day conduct of all Owners, Tenants, guests, and invitees within the Properties, the Common Area, and Canyonside Trail. All capitalized terms have the meanings ascribed to them in Article I of the Declaration and Article II of the Bylaws.

These Rules supplement and do not replace the Declaration or the Bylaws. In the event of any conflict between these Rules and other governing documents, the document hierarchy established in Article I, Section 22 of the Declaration controls: the Declaration takes precedence over the Bylaws; the Bylaws take precedence over these Rules; and these Rules take precedence over design guidelines and the Fine Schedule. All enforcement of these Rules is subject to the notice, hearing, and fine procedures required by Article XII of the Declaration and Texas Property Code Chapter 209.

> **NOTE:** *These Rules may be amended by the Board at a duly noticed meeting with thirty (30) days' advance written notice to all Members before substantive amendments take effect. Any amendment affecting owner rental rights or enforcement procedures requires a Two-Thirds Vote of Members. The current version of these Rules is available on the Association's website and upon request.*

ARTICLE I PROPERTY RENTALS AND OCCUPANCY

Section 1. Single-Family Residential Use.

All Lots within the Properties must be used solely for single-family residential purposes, consistent with Article VIII, Section 1 of the Declaration. The objective of the Association is to protect the value and desirability of the single-family residential community. No Owner may allow any occupancy of their Lot that is inconsistent with the single-family residential character of the community. No Owner may sublet any portion of a dwelling unit separately from the whole.

For purposes of these Rules, the term "Tenant" means one or more persons occupying a residential dwelling as a single household under a lease or rental agreement, as defined in Article I, Section 17 of the Declaration and applied in a non-discriminatory manner consistent with the Fair Housing Act and Texas Fair Housing Act.

Section 2. Minimum Lease Term.

An Owner may lease a Lot to a Tenant for residential purposes subject to a minimum lease term of six (6) months. No Owner may enter into any lease or rental agreement with a term of less than six (6) months. No lease may provide for automatic sub-weekly, daily, or nightly extensions that effectively create a short-term rental arrangement.

Section 3. Short-Term Rental Prohibition.

No Lot may be offered or made available for short-term or transient occupancy of any kind, including through any online platform, application, or booking channel (including but not limited to Airbnb, VRBO, HomeAway, Vacasa, Booking.com, or similar services). Each lease agreement must contain a provision expressly stating that short-term rental is prohibited by the Association's governing documents. Active listing of a Lot for short-term rental constitutes prima facie evidence of a violation subject to enforcement under Article XI of these Rules and Article XII of the Declaration.

Section 4. Tenant Registration Process.

Consistent with Texas Property Code § 209.016, the Association does not require Owner approval of Tenants and does not impose any application fee on Tenants. However, each Owner who leases a Lot must register the tenancy with the Association within fourteen (14) days of the commencement of the lease term by submitting the following information to the Board or its designated representative:

(a) The name(s) of all adult Tenants (18 years of age or older) residing in the dwelling;

(b) A telephone number and, if available, an email address for each adult Tenant for emergency communications;

(c) The commencement date and scheduled expiration date of the lease; and

(d) The Owner's current mailing address and telephone number during the tenancy.

Tenant contact information provided under this Section shall be used by the Association solely for emergency communications, enforcement communications, and required Association notices, and shall not be disclosed as a public record of the Association. Failure to register is a violation subject to fines under Article XI.

Section 5. Owner Responsibility for Tenants.

Each Owner is personally responsible for ensuring the compliance of the Owner's Tenants, contract purchasers, guests, and invitees with the Declaration, the Bylaws, and these Rules. Any violation by an Owner's Tenant or other occupant is deemed to have been committed by the Owner. All enforcement remedies shall be addressed to and enforced against the Owner.

Before the commencement of any tenancy, the Owner must provide each Tenant with a complete copy of the current Declaration, Bylaws, and these Rules and must obtain a written acknowledgment of receipt and agreement to comply. The Owner must retain the signed acknowledgment and produce it to the Board upon request.

Section 6. Lease Production.

Upon written request by the Board, an Owner who leases or rents a Lot must provide the Association with a copy of the lease or rental agreement within fourteen (14) days of the request. Personal financial terms (such as the rent amount) may be redacted, but the copy must preserve the commencement date, the lease term, and Tenant identification information.

Section 7. Short-Term Rental Fines.

Fines for short-term rental violations may, in the Board's discretion, be calibrated to the estimated rental income attributable to the unauthorized occupancy period, in addition to or in lieu of fines under the standard Fine Schedule, not to exceed the maximum amount permitted by Texas Property Code § 202.004(c). Each separate unauthorized short-term rental booking or occupancy event constitutes a separate offense.

ARTICLE II COMMON AREA USE

Section 1. Permitted Uses.

The Common Area may be used by Owners, Tenants, and their guests for park, recreational, social, and access purposes in a manner consistent with the residential character of the community. Permitted uses include: walking, jogging, cycling; passive recreational activities; community gatherings approved by the Board; and access to and from individual Lots via Canyonside Trail and other common roadways.

Section 2. Prohibited Activities.

The following activities are prohibited in the Common Area:

(a) Any commercial activity, including solicitation, peddling, or conducting business;

(b) Hunting, shooting, or discharging any weapon, firearm, bow, or similar device;

(c) Setting fires or using fireworks, fire pits, or open-flame devices except in Association-approved designated areas;

(d) Dumping or depositing any waste, hazardous material, yard debris, or construction material;

(e) Operating motorized vehicles other than for access to Lots, except on designated roadways;

(f) Camping or overnight occupancy;

(g) Posting signs, flyers, or advertisements without Board approval;

(h) Planting, removing, or materially altering vegetation without the prior written approval of the Firewise Committee and the Board as required by Article VIII, Section 3 of the Declaration;

(i) Any activity creating a nuisance, unreasonable noise, or safety hazard for residents.

Section 3. Guest Policy.

Owners and Tenants may bring guests into the Common Area. Each Owner or Tenant is responsible for the conduct of their guests in the Common Area. Guests using the Common Area without the accompaniment of a resident Owner or Tenant must be pre-authorized by the resident Owner or Tenant. Commercial recreational groups, organized teams, or parties of more than twenty (20) persons require advance written approval from the Board.

Section 4. Firewise Committee Coordination.

Before trimming, clearing, or removing any brush, trees, or vegetation on the Common Area, an Owner must: (a) contact the Firewise Committee for review and written recommendation; and (b) obtain prior written approval from the Board. This requirement applies to all vegetation management on Common Area, including activities an Owner believes are beneficial for fire prevention. Emergency removals required to prevent imminent danger may be authorized by the President alone pending subsequent Board ratification at the next Board meeting.

Section 5. Common Area Events and Reservations.

Owners may request use of designated Common Area spaces for private community events by submitting a written request to the Board at least fourteen (14) days in advance. The Board may approve such requests subject to reasonable conditions including cleanup obligations, liability releases, supervision requirements, and fees to offset any incremental costs. Private events must not unreasonably interfere with the general use and enjoyment of Common Area by other residents.

ARTICLE III CANYONSIDE TRAIL

Section 1. Speed Limit.

Canyonside Trail is a private, narrow, curved roadway constituting the primary means of vehicular access to and from the Properties. Prudent and attentive driving is required at all times. The maximum speed limit is fifteen (15) miles per hour. No person may operate any motor vehicle, bicycle, electric scooter, or other conveyance on Canyonside Trail in a reckless, careless, or unreasonably fast manner, regardless of whether such speed exceeds the posted limit.

The Board may post appropriate speed limit signs and enforce this speed limit through the Fine Schedule. Each violation is a separate offense. Habitual violations by the same vehicle or operator may result in escalating fines and referral to law enforcement where applicable.

Section 2. Vehicle Operation Standards.

All vehicles on Canyonside Trail must:

(a) Come to a complete stop at all posted stop signs;

(b) Yield to pedestrians and cyclists at all times;

(c) Use headlights from dusk to dawn;

(d) Not obstruct the roadway, including for loading or unloading, for more than fifteen (15) minutes without an escort preventing vehicle obstruction; and

(e) Not block fire hydrants, emergency access points, or the entrances to individual Lots.

Section 3. Pedestrian and Cyclist Safety.

Pedestrians, joggers, and cyclists have the right of way on Canyonside Trail at all times. Pedestrians walking dogs must keep pets on a leash not to exceed six (6) feet and must keep to the side of the roadway. Cyclists must yield to pedestrians and must signal turns. No motorized scooters, go-karts, ATVs, or similar recreational vehicles may be operated on Canyonside Trail except by emergency and maintenance vehicles.

Section 4. Shared Maintenance Awareness.

Owners are reminded that Canyonside Trail is subject to shared maintenance with Meadow Mountain Property Owners Association No. I, Inc. (MMPOA I) as described in Article V, Section 3 of the Declaration. Each Owner's pro-rata share of Trail maintenance costs is a lien obligation enforceable in the same manner as Annual Assessments. Questions about maintenance responsibilities or cost allocations should be directed to the Board.

ARTICLE IV ANIMALS AND PETS

Section 1. Permitted Animals.

No animals or birds other than a reasonable number of commonly recognized household pets may be kept on any Lot or in the Common Area. Pets must be kept solely as domestic pets and not for breeding, raising, sale, or any commercial purpose. As a general guideline, not more than four (4) dogs and/or cats in any combination per Lot is presumptively reasonable, though the Board may make case-by-case determinations based on Lot size and neighborhood impact.

Nothing in these Rules prohibits the keeping of service animals or assistance animals as required by the Americans with Disabilities Act, the Fair Housing Act, the Texas Human Resources Code, or applicable law, regardless of any breed, weight, or number restrictions in these Rules. Reasonable accommodation requests for assistance animals must be submitted in writing to the Board.

Section 2. Leash and Supervision Requirements.

All animals must be kept under direct physical control at all times when outside the Owner's Lot. Specific requirements:

(a) Dogs and cats must be on a leash not to exceed six (6) feet when in the Common Area or on Canyonside Trail;

(b) Animals may not be left unattended in the Common Area;

(c) Animals may not roam unsupervised on the Lots of other Owners;

(d) No animal may be tethered on the Common Area as a substitute for supervision.

Section 3. Waste Cleanup.

Owners and Tenants are responsible for immediately cleaning up any waste left by their animals in the Common Area, on Canyonside Trail, or on any other Lot. Failure to clean up animal waste is a violation subject to immediate fining without a cure period, as the violation is complete upon occurrence. The Association may install waste bag dispensers in the Common Area at its discretion.

Section 4. Noise and Nuisance.

No animal may be allowed to make an unreasonable amount of noise — including excessive barking, howling, or other vocalizations — that disturbs the reasonable peace and quiet of neighboring residents. Ongoing animal noise during quiet hours (10:00 p.m. to 7:00 a.m.) is a curable violation. Owners must take prompt corrective action upon receiving notice of a noise complaint. Repeated failures constitute a nuisance subject to escalating fines.

Section 5. Structures for Animals.

No structure for the care, housing, or confinement of any animal — including dog runs, kennels, or outdoor animal enclosures — may be constructed or maintained on any Lot in a location or manner visible from neighboring property or from the Common Area without prior ARC approval. ARC approval for animal structures is subject to the same application procedures as other improvements under Article VI of the Declaration.

Section 6. Board Determination.

On written request from any Owner, the Board has authority to conclusively determine whether a particular animal is a recognized household pet, whether it has become a nuisance, or whether the number of animals on a Lot is reasonable, after providing the affected Owner with notice and an opportunity to be heard.

ARTICLE V VEHICLES AND PARKING

Section 1. General Vehicle Standards.

All motor vehicles operated or stored within the Properties must: (a) be properly registered and display valid state license plates; (b) be in operable condition unless undergoing active emergency repairs of brief duration; and (c) not be subjected to major mechanical reconstruction or bodywork in any manner visible from neighboring property or public street.

Section 2. Prohibited Vehicle Storage.

The following may not be stored, parked, or maintained on any Lot, Common Area, or private driveway in a manner visible from any neighboring property or public street:

(a) Mobile homes, motor homes, or travel trailers;

(b) Truck campers not mounted on a truck;

(c) Boat trailers, utility trailers, or any other trailer;

(d) Boats and other watercraft of any type;

(e) Inoperable motor vehicles, including those awaiting parts or repair;

(f) Unlicensed vehicles, including off-road vehicles, ATVs, and dirt bikes, except in an enclosed garage.

Exceptions: this Section does not apply to temporary construction shelters used during ARC-approved construction, or to emergency vehicle repairs of brief duration (not to exceed 48 hours).

Section 3. Designated Storage Areas.

The Board may designate parking or storage areas within the Common Area for campers, trailers, motor homes, and boats, subject to availability and reasonable usage fees. Owners using designated storage areas must comply with all conditions established by the Board, including proper registration and regular removal for cleaning. The Board reserves the right to tow vehicles stored in violation of these conditions at the vehicle owner's expense after providing seventy-two (72) hours' written notice, except in cases of emergency obstruction.

Section 4. Parking on Common Area.

Vehicles may be parked on Common Area roads and roadways only for the purpose of loading, unloading, or temporary access. No vehicle may be left parked on a Common Area roadway for more than twenty-four (24) hours. Vehicles parked in violation of this Section may be towed at the Owner's expense after written notice and a reasonable opportunity to remove the vehicle, as provided in Article XI of these Rules.

Section 5. Construction Vehicles.

During ARC-approved construction, construction vehicles, equipment, and materials storage are permitted on the Lot subject to the construction, but must not block access to neighboring Lots or to Canyonside Trail. Construction vehicles must be removed from the Common Area at the end of each work day. Parking of construction crew vehicles on Canyonside Trail during working hours is permitted only with advance Board notification and only if one lane remains passable at all times.

ARTICLE VI TRASH AND RECYCLING

Section 1. Container Requirements.

All household waste must be placed in closed, covered containers approved by the Board and consistent with applicable City of Austin ordinances. Containers must be: (a) of a color and style consistent with requirements of the applicable waste management service provider; (b) kept in good repair and free of significant damage, odors, or pest infestation; and (c) stored in a location not visible from neighboring property or from any public or private street except as provided in Section 2 below.

Section 2. Collection Day Placement.

Trash and recycling containers may be placed at the curb or designated collection point no earlier than the evening of the day before the scheduled collection day. Containers must be returned to their stored location no later than the end of the collection day (by 8:00 p.m. on collection days). This is a curable continuing violation; daily fines apply for containers left out beyond the permitted time.

Section 3. Prohibited Materials.

The following may not be placed in trash containers or left on any Lot or in the Common Area:

(a) Hazardous waste, including paint, solvents, motor oil, batteries, pesticides, and similar materials — these must be taken to approved City of Austin hazardous waste collection sites;

(b) Construction debris (unless separately arranged with the waste hauler);

(c) Liquid waste of any kind;

(d) Medical or biohazardous waste;

(e) Dead animals (contact Austin Animal Services);

(f) Large items not accepted under the City's regular curbside program — these require scheduling a bulk item pickup with the applicable waste management provider.

Section 4. Yard Waste and Brush.

Yard waste, brush, and vegetative debris must be managed in accordance with applicable City of Austin ordinances and the waste management provider's guidelines. Brush or debris from Firewise activities on individual Lots must be removed from the Lot promptly and may not be deposited on Common Area without Board approval. Persistent accumulation of yard waste visible from the street or neighboring properties is a continuing violation subject to fines.

Section 5. Bulk and Special Items.

Large furniture, appliances, and other bulk items must be scheduled for special collection or taken to an approved disposal site. Bulk items may not be placed curbside more than twenty-four (24) hours before a scheduled collection. Items not collected must be returned to the Lot by the end of the collection day.

ARTICLE VII NOISE AND NUISANCES

Section 1. General Quiet Hours.

All residents must conduct activities in a manner that does not unreasonably disturb neighboring residents. Quiet Hours are from 10:00 p.m. to 7:00 a.m. on weekdays and 11:00 p.m. to 8:00 a.m. on weekends and holidays. During Quiet Hours, the following are prohibited in a manner audible from neighboring property:

(a) Amplified music, sound systems, or audio equipment;

(b) Power tools, lawn equipment, or mechanical equipment;

(c) Parties, gatherings, or outdoor events that generate significant noise;

(d) Vehicle horns, alarms, or revving engines not required by an emergency.

Section 2. Construction and Renovation Hours.

Construction, renovation, and landscaping activities involving power tools, heavy equipment, or significant noise are permitted only during the following hours:

(a) Monday through Friday: 7:00 a.m. to 7:00 p.m.

(b) Saturday: 8:00 a.m. to 6:00 p.m.

(c) Sunday and major holidays: construction activities are prohibited.

The Board may grant written exceptions for time-sensitive emergency repairs or for activities that City of Austin ordinances require during specific timeframes. Generator testing under Article VIII, Section 32 of the Declaration (8:00 a.m. to 8:00 p.m., all days) is governed by the Declaration, not these construction hours.

Section 3. Exterior Sound Devices.

Consistent with Article VIII, Section 8 of the Declaration, no exterior speakers, horns, whistles, bells, or other sound devices may be located, used, or placed on any Lot or in the Common Area in a manner that projects sound to neighboring Lots or to the Common Area. Security devices used exclusively for security purposes and not directed toward neighboring properties are excepted. Doorbell chimes audible only within the immediate vicinity of the front door are permitted.

Section 4. Outdoor Gatherings.

Outdoor gatherings with amplified music or sound are permitted within Quiet Hours provided the sound level does not unreasonably disturb neighboring properties. Owners are encouraged to provide advance notice to immediate neighbors of planned gatherings of more than twenty (20) guests. Gatherings that generate complaints from more than one neighbor will be treated as nuisances subject to the notice and enforcement procedures of Article XII of the Declaration.

Section 5. Odors and Emissions.

Consistent with Article VIII, Section 2 of the Declaration, no Lot or improvement may be used in any manner that results in the emission of objectionable, offensive, or noxious odors, fumes, smoke, or gases onto neighboring properties. Outdoor cooking is permitted consistent with City of Austin fire ordinances. Burn barrels, open burning of waste materials, and uncontrolled bonfires are prohibited.

Section 6. Lighting and Light Trespass.

Consistent with Article VIII, Section 29 of the Declaration, all exterior lighting must be directed downward or shielded to minimize glare and light trespass onto neighboring properties. Lighting that causes unreasonable glare or intrusion onto neighboring Lots between the hours of 11:00 p.m. and 6:00 a.m. is a continuing violation subject to notice and correction.

ARTICLE VIII LANDSCAPING AND EXTERIOR MAINTENANCE

Section 1. General Maintenance Standards.

Each Owner must maintain all trees, plants, turf, and foliage on their Lot in a neat, clean, and well-maintained condition consistent with the standards of the community, as required by Article VI, Section 11 of the Declaration. All portions of a Lot visible from neighboring property or the Common Area must always be maintained in conformance with these standards. The Association will send a courtesy notice before a formal Notice of Violation for most landscaping violations.

Section 2. Mowing and Trimming Schedule.

To maintain community appearance standards, the following minimum maintenance schedule applies:

(a) Lawn areas must be mowed at intervals sufficient to prevent grass from exceeding eight (8) inches in height;

(b) Lawn edges along sidewalks, curbs, and driveways must be trimmed monthly during the growing season;

(c) Shrubs and hedges visible from neighboring property or the street must be trimmed to prevent overgrowth beyond the property line;

(d) Tree branches along any roadway or sidewalk must be maintained at a clearance height of at least eight (8) feet above ground level;

(e) Flowerbeds must be kept free of weeds;

(f) Dead or diseased plants must be removed promptly; and

(g) Ornamental grasses and perennials that go dormant in winter must be cut back by April 1 of each year.

Section 3. Tree Preservation.

No Owner may cut, remove, injure, or destroy any tree with a trunk diameter of ten (10) inches or greater measured four (4) feet above existing ground level without the prior written approval of the Architecture Review Committee, as required by Article VI, Section 11 of the Declaration. Any such approval shall be conditioned upon compliance with City of Austin heritage tree and tree preservation ordinances. Owners should contact the ARC before engaging any tree service company for removal or significant pruning of protected trees.

Section 4. Invasive Species and Weeds.

Owners must actively control invasive plant species and noxious weeds on their Lots. The Association follows the City of Austin's guidance on invasive species. Species listed on the City of Austin's invasive plants list must be actively managed and may not be newly planted. The Board may issue seasonal notices regarding specific weed or invasive species concerns affecting the community.

Section 5. Irrigation and Drainage.

Irrigation systems must not be operated in a manner that causes runoff onto neighboring Lots, Common Area, or public rights-of-way. Owners must maintain all drainage facilities and easements on their Lots in good working condition as required by Article XI, Section 5 of the Declaration. Ponding or accumulation of standing water sufficient to breed mosquitoes is a health violation subject to prompt corrective action under Article VIII, Section 17 of the Declaration.

Section 6. Exterior Appearance of Structures.

All structures on a Lot, including fences, walls, outbuildings, and the primary dwelling, must be maintained in good repair and appearance. Peeling paint, exposed wood, deteriorating siding, and damaged roofing are violations subject to correction within the cure period stated in the Notice of Violation. Structures may not be abandoned or left in a state of disrepair inconsistent with the maintained character of the community.

Section 7. Sidewalk Maintenance.

Consistent with Article VIII, Section 12 of the Declaration, no vegetation may overhang or obstruct any sidewalk, trail, or walkway from ground level to a height of seven (7) feet. Owners must trim all vegetation on their Lots to prevent sidewalk

encroachment. Following notice of an encroachment violation and failure to cure, the Association may trim the encroaching vegetation at the Owner's expense as a Special Assessment.

ARTICLE IX ARCHITECTURAL REVIEW PROCESS

Section 1. When ARC Approval is Required.

No improvements or alterations of any kind may be erected, constructed, placed, installed, or maintained on any Lot without the prior written approval of the Architecture Review Committee ("ARC"), consistent with Article VI, Section 3 of the Declaration and Article I, Section 11 of the Declaration. This requirement applies to all exterior changes, including but not limited to:

(a) New construction, additions, and structural alterations;

(b) New fences, walls, gates, and pergolas;

(c) Changes to exterior paint colors, siding, or roofing materials;

(d) Driveways, patios, walkways, and other hardscape;

(e) Pools, spas, water features, and outdoor kitchens;

(f) Solar panels, solar roofing, generators, EV chargers, and satellite dishes;

(g) Rainwater harvesting systems, storage tanks, and elevated storage;

(h) Flagpoles, basketball goals (permanent), and sports courts;

(i) Significant landscaping changes, including tree removal;

(j) Window replacements, door replacements, and awnings visible from outside; and

(k) Any other alteration that changes the exterior appearance of the Lot.

Section 2. Preliminary Review.

Owners are encouraged to submit a preliminary concept for non-binding review by the ARC before preparing final plans. A preliminary review is informal, does not commit the ARC to any position, and does not start the 45-day review clock. Preliminary review requests may be submitted by email to the ARC Chair with a brief description and any available sketches or photographs.

Section 3. Application Requirements.

Each application for ARC approval must include two (2) complete sets of the following:

(a) A completed ARC application form (available on the Association's website);

(b) Site plan showing the location of the proposed improvement on the Lot and its relationship to property lines, easements, and existing structures;

(c) Construction drawings or product specifications sufficient for the ARC to evaluate the proposed improvement;

(d) Material and color samples or specifications (where applicable);

(e) A grading and runoff control plan for any improvement involving excavation or impervious cover (Article VI, Section 4 of the Declaration); and

(f) A landscaping plan for any improvement requiring ARC approval (Article VI, Section 5 of the Declaration).

Applications may be submitted by mail to the Association's mailing address or by email to the ARC's designated email address as posted on the Association's website.

Section 4. Review Timeline.

The ARC must issue a written decision within forty-five (45) days of "acknowledged receipt" — defined as the date the ARC confirms in writing that it has received a materially complete submission. If the ARC finds a submission materially incomplete, it must notify the Owner in writing within ten (10) business days, specifying the deficiencies; the 45-day clock does not begin until a complete submission is received. If the ARC fails to act within 45 days after acknowledged receipt, the improvement is deemed approved provided the Owner delivers a written reminder notice to the Board.

Section 5. Decisions and Conditions.

ARC decisions shall be one of: (a) approved as submitted; (b) approved with stated conditions; or (c) disapproved. Disapprovals must specifically identify the features causing disapproval and, where practicable, suggest modifications that would make the plans acceptable. Conditional approvals must state all conditions clearly; the Owner must satisfy all conditions before commencing construction. ARC approval does not substitute for any governmental permit required by the City of Austin or Travis County.

Section 6. Construction Standards.

All ARC-approved construction must comply with the following:

(a) Construction shall be completed within twelve (12) months of commencement, consistent with Article VI, Section 10 of the Declaration;

(b) Construction activities are limited to the hours specified in Article VII, Section 2 of these Rules;

(c) Construction debris and materials must be kept on the Lot and not on Common Area or Canyonside Trail, except with Board approval;

(d) A construction dumpster or roll-off container may be placed on the Lot's driveway during active construction;

(e) All temporary structures and construction equipment must be removed promptly upon completion; and

(f) Damage to Common Area, neighboring Lots, or Canyonside Trail caused by construction activities must be repaired promptly at the Owner's expense.

Section 7. Completion Verification.

Upon completing an approved improvement, the Owner should notify the ARC in writing. The ARC may conduct a post-completion inspection to verify compliance with the approved plans and conditions. If the completed improvement does not comply with the approved plans or conditions, the ARC shall notify the Owner in writing and the Owner must bring the improvement into compliance within the time specified in the notice. Non-compliance is subject to enforcement under Article XII of the Declaration.

ARTICLE X FIREWISE AND BRUSH MANAGEMENT

Section 1. Purpose.

Meadow Mountain is located in a designated Wildland-Urban Interface (WUI) area. Wildfire risk management is essential for the safety of all residents and the preservation of the natural environment. The Board and Firewise Committee work in coordination with the Texas A&M Forest Service, the City of Austin Fire Department, and the Firewise USA program to minimize wildfire risk on both individual Lots and the Common Area.

Section 2. Defensible Space Standards for Individual Lots.

Each Owner is responsible for maintaining adequate defensible space on their Lot consistent with guidance from the Texas A&M Forest Service and the Firewise Committee. Minimum standards include:

(a) Zone 1 (0–30 feet from the structure): Vegetation should be low and irrigated where possible; combustible materials (firewood, propane tanks, outdoor furniture) should be stored at least 10 feet from any structure; no woodpiles adjacent to the house;

(b) Zone 2 (30–100 feet from the structure): Vegetation should be spaced to slow fire spread; ladder fuels (low branches that could carry fire from ground to canopy) should be removed; dead vegetation should be cleared regularly;

(c) Dead, diseased, or dying trees and shrubs within either zone should be removed promptly, consistent with applicable tree preservation requirements; and

(d) Leaf litter, pine needles, and fallen branches should be raked and removed from within 30 feet of any structure regularly, particularly in the fall.

The Firewise Committee publishes supplemental defensible space guidelines annually and offers on-site consultations for Owners upon request.

Section 3. Brush Clearing on Common Area.

As provided in Article VIII, Section 3 of the Declaration, an Owner may not trim, clear, or remove any brush, trees, or vegetation on Common Area without: (a) contacting the Firewise Committee for written recommendations; and (b) receiving prior written approval from the Board. This requirement exists both to protect the ecological integrity of the Common Area and to ensure that vegetation management is coordinated across the community for maximum fire risk reduction.

To request approval for Common Area brush clearing, an Owner must submit to the Board: (i) a written description of the area to be cleared and the vegetation to be removed; (ii) the proposed clearing method; and (iii) the Firewise Committee's written recommendation. The Board shall act on such requests within thirty (30) days.

Section 4. Community Firewise Activities.

The Association participates in or aspires to participation in the Firewise USA program. The Firewise Committee shall: (a) coordinate at least one community-wide defensible space work day per year; (b) maintain a community wildfire risk assessment updated annually; (c) coordinate with neighboring associations, including MMPOA I, on shared risk management; and (d) apply for available grants or funding from the Texas A&M Forest Service or other programs to offset community fire risk reduction costs.

Section 5. Emergency Provisions.

In the event of an imminent wildfire threat, the Board has authority to take any action necessary to protect the Common Area, including emergency vegetation removal, contracting for emergency services, and coordinating with fire authorities, without following the normal notice and approval procedures of these Rules. The cost of emergency protective actions shall be an expense of the Association. Following any emergency action, the Board shall notify all Members within five (5) days of the action taken.

ARTICLE XI ENFORCEMENT

Section 1. Reporting Violations.

Any Owner who believes another Owner or resident is in violation of the Declaration, these Bylaws, or these Rules may report the violation to the Board in writing. Reports should describe: (a) the nature of the alleged violation; (b) the specific provision believed to have been violated; (c) the location and date of the violation; and (d) any available evidence. Anonymous reports will be reviewed but may be given less weight in the enforcement process. The Board may investigate reported violations based on its own observation even without a formal complaint.

Section 2. Courtesy Notices.

For first-time or minor violations that do not pose a health or safety risk, the Association may issue a courtesy notice before sending a formal Notice of Violation. Courtesy notices are not required by law and do not carry legal consequences, but they provide the Owner with an informal opportunity to correct the violation without entering the formal enforcement process. Courtesy notices are not counted as part of the formal notice-and-hearing sequence for purposes of repeat violation provisions.

Section 3. Notice of Violation.

Before levying any fine, the Association shall send a written Notice of Violation by certified mail, return receipt requested, as required by Texas Property Code § 209.006. The Notice of Violation shall:

(a) Describe the violation with sufficient specificity;

(b) State the remedy required and, if applicable, the fine amount;

(c) Specify a cure period by which the violation must be corrected (not less than ten (10) days for most violations);

(d) State that the Owner may request a hearing before the Board within thirty (30) days of the notice;

(e) State that attorney's fees may be charged if the violation persists after the specified deadline; and

(f) Include information about Servicemembers Civil Relief Act rights.

The cure period may be omitted only if: (i) the violation is uncurable (a completed act); (ii) the violation poses an immediate threat to public health or safety, or is not reasonably susceptible of being corrected within the cure period; or (iii) the Owner received a Notice of Violation for a similar violation within the preceding six (6) months.

Section 4. Hearing Process.

Upon timely written request by the Owner (within thirty (30) days of the Notice of Violation), the Board shall schedule a hearing and give the Owner at least ten (10) days' advance written notice of the date, time, and place, consistent with Texas Property Code § 209.007. The hearing shall be conducted by a panel of not fewer than three (3) members of the Board. At the hearing, the Owner may: (a) present evidence and arguments; (b) appear with or without legal counsel or an authorized representative; and (c) ask questions of any witnesses presented. The hearing panel shall issue its written decision within fourteen (14) days and shall provide a copy to the Owner. No fine shall be imposed until after the hearing opportunity has been provided.

Section 5. Fines.

Fines shall be assessed in accordance with the Fine Schedule published by the Board and provided to all Members. The default Fine Schedule is set forth in Article XII, Section 4 of the Declaration (currently: First Offense $150; Second Offense $300; Third and Subsequent Offenses $450). Daily fines for continuing violations shall not exceed $200 per day. Total fines for any single violation shall not exceed $5,000, consistent with Texas Property Code § 202.004(c). The administrative processing fee per notice is $25.

Payment of a fine does not substitute for correcting the underlying violation. Both the fine and corrective action are required. Consistent with Texas Property Code § 202.004(b), the Association may not assess a fine for a violation of any provision not contained in a published governing document of the Association; any such purported fine is void.

Section 6. Repeat Violations.

A violation of the same provision within six (6) months of a prior Notice of Violation constitutes a repeat violation. Repeat violations: (a) do not receive a new cure period; (b) are subject to an escalating fine under the Fine Schedule; and (c) may be treated as a continuing violation subject to daily fines if the nature of the violation permits. The Board must notify the Owner in the Notice of Violation if repeat-violation treatment applies.

Section 7. Association Self-Help Remedies.

If an arbitration decision, court order, or the expiration of a post-hearing cure period establishes that a violation exists and the Owner fails to correct it within the specified time, the Association may — but is not obligated to — enter the Lot and take all actions necessary to remedy the violation. The cost of such remedial action shall be added as a Special Assessment to the Owner's Annual Assessment account and is subject to the same lien and collection remedies as Annual Assessments. Entry onto a Lot under this Section is not trespass.

Section 8. Liens and Collections.

Unpaid fines that remain outstanding for more than thirty (30) days after the Board's final decision in any hearing may, at the Board's discretion, be recorded as an assessment lien against the Owner's Lot, subject to all requirements of Article IV of the Declaration and Texas Property Code Chapter 209. The Association must send a certified-mail pre-lien notice before recording any lien, must offer a payment plan as required by § 209.0093, and must comply with all other Chapter 209 procedural requirements.

Section 9. Owner-to-Owner Complaints.

Any Owner who believes another Owner is in violation of the Declaration may also initiate an owner-to-owner complaint procedure under Article XII, Section 1 of the Declaration. That procedure now includes a mandatory thirty (30) day mediation period before arbitration may be demanded. The complaining Owner should first send written notice to the offending Owner and, if uncured within ten (10) days, submitting a complaint to the Chairman of the Board for arbitration. The Board shall consolidate any concurrent Association enforcement action with the owner-to-owner proceeding where the subject matter overlaps.

Section 10. Non-Discriminatory Enforcement.

All enforcement actions shall be taken in a non-discriminatory manner and applied uniformly to all Owners and Lots. The Association shall not enforce any provision of these Rules in a manner that violates the Fair Housing Act, the Americans with Disabilities Act, or applicable Texas law. Owners and Tenants with disabilities retain the right to request reasonable accommodations of Association rules and reasonable structural modifications to their dwellings as provided in Article VIII, Section 1 of the Declaration. The Association shall not enforce these Rules in a manner that has a disparate impact on any protected class under the Fair Housing Act, the Texas Fair Housing Act, or applicable law. If an Owner believes enforcement has been discriminatory or retaliatory, the Owner may raise that defense in any hearing proceeding and may submit a complaint to the Texas Workforce Commission's Civil Rights Division.

ADOPTED as Exhibit A to the Bylaws by the Board of Directors of

MEADOW MOUNTAIN PROPERTY OWNERS ASSOCIATION NO. II-A, INC.

a Texas nonprofit corporation

_____ President

_____ Vice President

_____ Secretary/Treasurer

Date of Adoption: _____